



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11978

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: December 31, 1997

1. **GRANTEE:** Radian International LLC
Austin, Texas
2. **PURPOSE AND LIMITATION:** This emergency exemption authorizes a one-time shipment of certain flammable liquids and poisons that are described on shipping papers and marked on packages with a generic proper shipping name instead of the proper shipping name. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 172.202(a)(1), 172.203(k), 172.301(a)(1) and 172.301(b).
5. **BASIS:** This emergency exemption is based on the application of Radian International LLC, dated October 9, 1997, submitted in accordance with 49 CFR 107.117, and supplemental information, dated October 17, 1997, and a determination that it is necessary in order to preclude a significant economic loss.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquids, n.o.s.	3	UN1993	I
Toxic liquids, flammable, organic, n.o.s.	6.1	UN2929	I
Toxic liquids, inorganic, n.o.s.	6.1	UN3287	I
Toxic liquids, organic, n.o.s.	6.1	UN2810	I
Toxic solids, inorganic, n.o.s.	6.1	UN3288	I
Toxic solids, organic, n.o.s.	6.1	UN2811	I

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Materials listed in paragraph 6 above must be packed in combination packaging, at the Packing Group I performance level, as follows:

(1) Inner packagings must be sealed bottles, each containing not more than 200 grams of material. Each bottle must be sealed in a plastic bag. Not more than 10 bottles must be packed and securely cushioned with inert, absorbent material in an intermediate metal can.

(2) Outer packaging must be a UN 1A2/X removable head steel drum. Not more than 24 sealed intermediate metal cans must be packed and securely cushioned with inert, absorbent material in a drum.

b. SHIPPING DESCRIPTION - The appropriate "n.o.s." proper shipping names listed in paragraph 6 above must be entered on shipping papers and marked on packages. Technical names are not required.

c. OPERATIONAL CONTROLS - The following operational controls apply:

(1) Packages are authorized to be transported from Austin, Texas to the National Institute of Standards and Technology, Gaithersburg, Maryland.

(2) Packages must be transported by a private/exclusive use carrier.

(3) Each package must be marked in letters and numerals at least two inches high in contrasting background "DOT-E 11978".

8. SPECIAL PROVISIONS:

Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

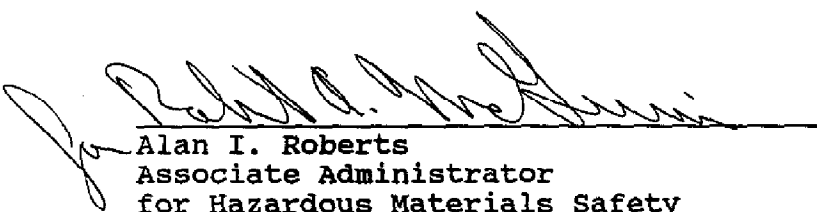
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)